

RTE: A Symbolic Gesture

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If the government is really sincere about the Right to Education, it must put aside its neo-liberal obsession and launch a common school system for all children up to the age of 18.

The Supreme Court's majority judgment upholding the constitutional validity of the Right to Education (RTE) Act 2009, which mandates 25% free seats to the poor in government and private unaided schools uniformly across the country, was greeted with much enthusiasm by the media. There were euphoric statements about how this would clear the way for poor students to get "quality education" in elite schools. Notwithstanding the myriad problems associated with its implementation, no one seems to have given a thought to some obvious questions: what about the students in government schools and the role of government in education and so on.

Resorting to Trickery

The real reason for the RTE Act was to hide the massive failure of successive governments to keep the promises made in the Constitution. The right to education was already enshrined in Article 45 of Part IV of the Constitution as a Directive Principle of State Policy. Much against the wishes of Babasaheb Ambedkar the Constituent Assembly had denied it a place in Part III as a Fundamental Right. However, except for its lack of justiciability, this was the only Article among the Directive Principles that had a specific time frame of 10 years for its fulfilment from the commencement of the Constitution. Successive governments have been guilty of failing to keep this promise. The wake-up call came in 1993 with the Supreme Court judgment in the case of *Unnikrishnan vs State of Andhra Pradesh*. In this almost revolutionary interpretation, the Court stated that Article 45 in Part IV of the Constitution must be read in "harmonious construction" with Article 21 (Right to Life) in Part III since the Right to Life is meaningless if it is without access to knowledge. Thus the Supreme Court

in 1993 accorded the status of Fundamental Right to "free and compulsory education" for all children up to 14 years of age (including the children below six years).

The delivery of this verdict forced the then Congress government of the time to figure out ways and means of putting it into practice. The Saikia Committee was formed and in 1997 recommended an amendment of the Constitution making education for children under 14 a fundamental right. Finally, in December 2002, the 86th amendment to the Constitution was passed with the Bharatiya Janata Party-led National Democratic Alliance government inserting a new Article 21A. This summarily denied the same right to education to 17 crore children up to the age of six and ensured that the new Article 45 took care of their early childhood nurture and education. Article 21A stated that "the State shall provide free and compulsory education to all children of the age of 6 to 14 years in such manner as the State may, by law, determine". It took another eight years after the 86th amendment and 17 years from the passing of the Unnikrishnan judgment before the RTE Act was passed. It was not a right; it was more like snatching away an existing right given in the Constitution! It just gave the government an opportunity to legitimise the rampant commercialisation of education that it had anyway promoted during the previous two decades of its so-called economic reforms.

Scope of the Judgment

The Constitution had envisaged a common school system in consonance with the principles of equality and social justice enshrined as Fundamental Rights. Any programme that provides education of varying quality to different sections of society and denies education of equitable quality is unacceptable to the Constitution. But this is precisely what has been happening. The schools ranged from those with no roof and no teacher in the villages to the expensive boarding schools and international schools for the handful of elite. The RTE legitimised

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this trend as neo-casteism in the sphere of education.

According to the latest District Information System for Education (DISE) statistics for 2010-11 (provisional), 78.41% of all schools are government schools with a 67.15% share in total enrolment, making the government the major provider of education. Of the 21.49% private schools, 14.04% private unaided schools with an estimated enrolment share of 20% are the real subject matter of the judgment. A large number of these unaided schools are minority institutions and therefore have been excluded from the application of RTE as per Articles 29 and 30 of the Constitution. The coverage of the judgment is thus reduced to schools currently with less than 10% of gross enrolment.

All said and done, this scheme of admitting 25% students from the economically weaker sections (EWS) is going to be merely symbolic. While the judgment received euphoric welcome from all quarters, no one spoke about the obvious obstacles in the way of its implementation. The main issue here is who is to bear the cost. The RTE Act stipulates that schools providing free and compulsory elementary education shall be reimbursed the expenditure to the extent of per-child-expenditure incurred by the state concerned, or the actual cost charged for a student, whichever is less. Obviously, this would be peanuts in comparison to what these schools actually charge their students. Union Minister for Human Resource Development Kapil Sibal confirmed that government's contribution towards reimbursement will vary from Rs 6,000 to Rs 19,000 annually (Rs 500 to Rs 1,583.33 per month). Many of these schools (the real referent group) are internationally benchmarked in terms of their teacher-student ratio, infrastructure, technology intensity and consequently, fees. The average fee for a regular school ranges from Rs 70,000 to Rs 1,00,000, whereas for an international school it could be Rs 5 to 7 lakh. The extracurricular activities invariably add to the formal costs. Many of these international schools take their students on trips abroad as part of the curriculum.

This symbolic gesture from the government will surely come in handy for these schools to increase their fee structure. Already the class that is their clientele has expressed apprehension about this move. While alleviating their fears Sibal suggested that they mobilise corporate support under the corporate social responsibility (CSR) scheme, another neo-liberal contrivance. They will certainly exploit all these areas irrespective of whether the EWS students go there or not. The important issue is whether the real EWS students will go to the quality institutions the judgment envisages!

Regulation and Reservation

It is an open secret that the policy focus of the Indian government is to throw open Indian education. The Indian education market is generally regarded as the only market which is price inelastic. Indians look upon education as the only resource which can promise a reasonable standard of living and better prospects for their children. India's education sector currently is believed to offer an estimated \$40 billion market, with a potential 16% five-year compound annual growth rate (CAGR) of which approximately 50% is in the school segment. The RTE Act well illustrates how the government could transform the crisis created by the Supreme Court into an opportunity to drive its neo-liberal agenda. Right to education as an integral part of the right to life, read in conjunction with other articles of the Constitution as interpreted by the Supreme Court, implies that all children get the same quality of education through a common school system. But successive governments have skilfully dodged this essence and escaped from their obligations by adopting a neo-liberal solution. They brought in all kinds of neo-liberal taxonomy such as the public private partnership (PPP), voucher system, refinanced loans and tax exemptions to both the investors (corporate houses, non-governmental organisations and religious bodies) and the consumers (children and parents), and so on in the sphere of education.

To assuage apprehensions about unbridled profiteering by private

entrepreneurs in the free market, the neo-liberal framework has an instrument of regulation to take care of market imperfections and infirmities. Free the economic sector for private capital and install a regulator is the institutional solution of the neo-liberals. We have many such regulators already in place for the deregulated sectors such as electricity, petroleum, telecom, financial markets, and banking. Fundamentally, by assigning an administrative figure with the responsibility of overseeing the interests of the people, a political space is effectively depoliticised. The regulator is supposed to prescribe rules of the game and referee the play. There is a proposal to install such a regulator for the education market that has been freed for private capital.

Another instrument wielded by the Indian government excellently supplements the neo-liberal stratagem and that is reservations. Systematically embellishing it with attributes of social justice, successive governments have used it as a potent weapon during socio-economic crises. Reservations have gained such an aura that their very mention pre-empts opposition and lends them an easy passage. The RTE Act as it was conceived legitimised a multilayered school system and promoted commercialisation of education, and was bound to be seen as elitist by the multitude of masses. The government was thus forced to take a stand. In order to assuage apprehensions it came out with the solution of 25% reservation for the EWS students. Insofar as this policy has earned praise from the intellectuals and general public, the government has already proved to be successful, notwithstanding the actual reality.

Given the situation, the Supreme Court judgment may be commendable. But the issue is much bigger than the mere applicability of the 25% reservation. If the government is really sincere, it must spare education from its neo-liberal obsession and launch a common school system for all children across the country up to the age of 18 years which is capable of keeping pace with the changing times.